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To : <nhanekom@judiciary.org.za>

Subject : URGENT: Case No. 2026-086906 – AfroCentric Investment Corporation Limited v Matthee – Updated Notice to Anticipate Return Day – Hearing 24 April 2026

Date : 23 Apr 2026 09:06

To: The Registrar, High Court of South Africa (Western Cape Division)

Dear Honourable Registrar,

I write in my capacity as the Respondent, acting in person, in the above matter.

1. NOTICE OF HEARING

Kindly be advised that the Respondent has filed a Notice to Anticipate the Return Day of the Rule Nisi granted by the Honourable Acting Justice Mphego on 16 April 2026, in terms of Uniform Rule 6(8) and Paragraph 7 of the said Court Order.

The matter is set down for hearing on FRIDAY, 24 APRIL 2026 at 10H00 in the Urgent Motion Court, or as soon thereafter as the matter may be heard.

2. SERVICE COMPLIANCE

Written notice of the Respondent's intention to anticipate the return day was served on the Applicant's attorneys of record, Deneys Attorneys (per Jason Whyte), on Wednesday, 22 April 2026 at 11h32 – satisfying the 24-hour notice requirement prescribed by Paragraph 7 of the Court Order.

3. DOCUMENTS FILED

The following documents have been filed in this matter and are served herewith for the Registrar's record:

- (a) Notice to Anticipate Return Day (in terms of Uniform Rule 6(8));
- (b) Annexure NTA1 – Email from Respondent to Applicant's attorneys dated 20 April 2026 (filing of Supplementary Answering Affidavit and Notice of Counter-Application);
- (c) Annexure NTA2 – Email from Respondent to Applicant's attorneys dated 22 April 2026 at 11h32 (formal notice of intention to anticipate);
- (d) Annexure NTA3 – Email response from Applicant's attorneys (Jason Whyte, Deneys) dated 22 April 2026 at 13h37 (opposition to anticipation and threats of punitive costs);
- (e) Annexure NTA4 – Email reply from Respondent dated 22 April 2026 at 15h03 (rebuttal of Applicant's conflation of discovery and emergency timelines), together with UI-19 Employer Declaration by Medscheme Holdings Pty Ltd signed 19 January 2026, confirming termination code 6 and gross remuneration of R42,796 – evidencing the UIF administrative deadlock and the practical necessity of the declaratory relief sought;
- (f) Annexure WW6 – Affidavit of Destitution deposed to by the Respondent.

4. RELIEF TO BE SOUGHT

At the hearing, the Respondent will move for the following orders:

- (a) Discharge of the Rule Nisi and setting aside of the interim interdict in its entirety;
- (b) Granting of the declaratory relief sought in the Respondent's counter-application;
- (c) A punitive costs order against the Applicant on the scale as between attorney and client.

5. NOTE ON APPLICANT'S OPPOSITION

The Respondent draws the Registrar's attention to the fact that the Applicant's attorneys have, in Annexure NTA3, threatened to seek a costs order against the Respondent should the matter proceed on Friday. The Respondent respectfully submits that this threat is without legal foundation and is itself evidence of the litigation attrition strategy documented in Annexure WW6. The Rule 6(8) right to anticipate is express and unconditional and cannot be suspended by a discovery timeline.

6. ACKNOWLEDGMENT REQUESTED

Kindly confirm receipt of this correspondence and the enrolment of this matter for hearing on 24 April 2026 at 10H00 in the Urgent Motion Court.

The Respondent remains self-represented and destitute. Full particulars of the Respondent's humanitarian circumstances are set out in Annexure WW6 filed herewith.

Yours faithfully,